

Ghanshyam Gupta v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 31 March 2023 · Writ - C No. 10635 of 2023 · **Disposed; objection in two weeks, then final assessment**

HEADNOTE

Writ against a theft-case recovery notice disposed of on the licensee's statement that it was a provisional assessment: the consumer may object within two weeks, and the respondents must then pass a fresh final assessment under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ghanshyam Gupta challenged, in Writ-C No. 10635 of 2023 before the Allahabad High Court, a recovery notice dated 2 September 2022 issued by respondent no. 2 and the consequent proceedings to recover an amount allegedly due from him in a case of theft of electricity. Counsel for the Electricity Department stated that the impugned notice was a notice of provisional assessment and that any objection filed by the petitioner would be considered in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::final-assessment

Objection to provisional assessment, then fresh final assessment

HOLDING

Where a writ challenges a recovery notice and consequential proceedings in an alleged electricity-theft case, and the licensee's counsel states that the notice is a provisional assessment which will be considered in accordance with law, the petition is disposed of with liberty to the consumer to file an objection within two weeks; if that objection is filed, the respondents must pass a fresh order of final assessment after following the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG Supply Code invoked for the final-assessment procedure without a numbered clause

PRINCIPLE TAGS

provisional-assessment-objection-then-final-assessment The Court treated the 2 September 2022 recovery notice as a provisional assessment in a theft case and disposed of the writ by allowing an objection within two weeks, followed by a fresh final assessment under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT AMOUNT WAS RECOVERABLE UNDER THE NOTICE DATED 2 SEPTEMBER 2022

The writ was disposed of without a finding on theft or quantum; both were left to the objection and a fresh final assessment. ¶ 1